

26LBCV00071 26LBCV00071

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-06-23

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Case Number: 26LBCV00071 Hearing Date: June 23, 2026 Dept: S28

DISCUSSION

Applicable

Law

The proper procedure to attack false

allegations in a pleading is a motion to strike. (Code Civ. Proc. §436(a).) In granting a

motion to strike made under Code Civ. Proc. §435, “[t]he court may, upon a

motion made pursuant to Section 435 [notice of motion to strike whole or part

of complaint], or at any time in its discretion, and upon terms it deems

proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted

in any pleading.” (Code Civ. Proc. §436,(a).) Irrelevant matters include

immaterial allegations that are not essential to the claim or those not

pertinent to or supported by an otherwise sufficient claim. (Code Civ. Proc.

§431.10.) The court may also “[s]trike out all or any part of any pleading not

drawn or filed in conformity with the laws of this state, a court rule, or an

order of the court.” (Code Civ. Proc.

§436(b).)

Analysis

A. Meet

and Confer

The

Court has reviewed the meet and confer discourse between the parties, and finds

that further meet and conferral would be futile, and thus the motion is ripe

for adjudication.

B. Striking

Punitive Damages

To

succeed on a motion to strike punitive damages allegations, it must be said as

a matter of law that the alleged behavior was not so vile, base, or

contemptible that it would not be looked down upon and despised by ordinary

decent people. (Angie M. v. Superior Court (1995) 37 Cal. App. 4th 1217,

1228-1229.) “Under the statute, malice does not require actual intent to

harm. Conscious disregard for the safety

of another may be sufficient where the defendant is aware of the probable

dangerous consequences of his or her conduct and he or she willfully fails to

avoid such consequences. Malice may be

proved either expressly through direct evidence or by implication through

indirect evidence from which the jury draws inferences.” (Pfeifer v. John Crane, Inc. (2013)

220 Cal. App. 4th 1270, 1299 (internal quotations omitted).)

Defendants argue that allegations regarding punitive

damages must be struck as the

vast majority of the Complaint contains allegations and statements that amount

to nothing more than supposed negligent conduct on the part of Defendants.

(Mot., p. 4.) Defendants contend that the allegations that defendants acted

maliciously, intentionally or with conscious disregard for the health and

safety of plaintiffs rest squarely on bald legal conclusion, without any of

necessary factual substantiation necessary to support claims for punitive

damages. (Ibid.)

In opposition, Plaintiffs argue that punitive damages

should not be struck as the allegations support such a remedy. (Opp., p. 1.) Plaintiffs contend that this is not

a negligence case with punitive damages tacked on as Plaintiffs allege an

intentional fraudulent scheme, deliberate concealment, and conscious refusal to

act, conduct that falls squarely within California Civil Code §3294. (Ibid.)

The Complaint alleges the following: Defendants unlawfully partitioned a

single-family property into fictitious units, units that “did not legally

exist” and lacked any certificate of occupancy, and rented them to Plaintiffs under false pretenses. (Complaint ¶¶ 4–5.) Throughout Plaintiffs’ tenancies, Defendants exposed them to raw sewage contamination, toxic mold, and dangerous carbon dioxide levels, while actively concealing these conditions and refusing to remediate them despite repeated complaints and years of documented government violations. (Complaint ¶¶ 30–35, 40.) The Los Angeles Housing Department ultimately placed the property into the Rent Escrow Account Program (REAP) on May 9, 2024, confirming the property remained uninhabitable after years of noncompliance. (Complaint ¶ 44.)

Plaintiffs

further argue that where a complaint adequately pleads fraud, a punitive damages allegation tied to that cause of action flows directly from the underlying facts as a matter of law. (Opp., p. 2.) Plaintiff contends that the Complaint pleads each element of fraud with the required specificity: Defendant Oswaldo Martinez is identified by name as “the main contact and individual in charge of leasing and negotiating with Plaintiffs regarding the rental units.” (Complaint ¶ 23.) It is Mr. Martinez who personally “misrepresented the lower level of the Property as a separate, legal residential unit, despite having no certificate of occupancy or legal authority to do so.” (Complaint ¶ 24.)

Defendants represented that the units were “legal rental units suitable for

residential occupancy,” “properly permitted, lawfully constructed, and in compliance with applicable building and housing codes,” and that those units possessed valid certificates of occupancy. (Complaint ¶¶ 105(a)–(d).) Every one of these representations was false — the units were the product of an unlawful, unpermitted partition that defendants themselves constructed. (Complaint ¶¶ 24–26.) The complaint alleges that “Defendants intentionally concealed the illegality of the converted unit in order to maximize rental income.” (Complaint ¶ 26.) Defendants “knew [their representations] were false at the time they were made.” (Complaint ¶ 107.) The fraud extended beyond lease inception because when Plaintiffs Angelica and Ronnie directly asked about pre-existing mold and sewage problems, defendants’ agent provided a categorical denial of conditions defendants knew to exist. (Complaint ¶ 33.) Affirmative denial of known conditions is not mere nondisclosure — it is fraud in its most recognizable form. Defendants made these misrepresentations “with the intent to induce Plaintiffs to rely on them, enter into lease agreements, pay rent, occupy the unit, thereby directly benefitting Defendants financially while harming Plaintiffs.” (Complaint ¶ 108.)

In reply,

Defendants merely argue that “the Complaint lacks any pled facts that evidence actual intent or evil motive by defendants. Similarly, there are no facts pled

that evidence defendants truly intended to harm plaintiffs; were aware of the probable dangerous consequences of their actions while deliberately failing to avoid the consequences; or knew that extreme harm to plaintiffs were a virtual certainty but failed to act anyway." (Reply, p. 4.)

Here,

Plaintiffs have alleged sufficient facts to support their request for punitive damages at this stage. The Complaint illustrates that this is not a negligence case with punitive damages merely "tacked on" as Plaintiffs allege an intentional fraudulent scheme, deliberate concealment, and Defendants' conscious refusal to act with knowledge that Plaintiffs were suffering in illegal and harmful living conditions. It

cannot be said as a matter of law that the alleged behavior was not "so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people" as required to strike punitive damages. (Angie M., *supra*, 37 Cal.App.4th at pp. 1228-1229.) The Complaint adequately alleges Defendants' illegal rental scheme and conscious disregard for the safety of Plaintiffs while being aware of the probable dangerous consequences of their conduct.

Therefore, Defendants' Motion to

Strike is DENIED as Plaintiffs sufficiently plead claims that give rise to punitive damages.

CONCLUSION

Defendants' Motion to Strike is

DENIED.

Moving party to give notice.